

ta, Customer's obligations as a Controller under the DPA will apply. Any sub-processors used to provide AI Functionality powered by GitLab Models will be listed at <https://about.gitlab.com/privacy/subprocessors/> and all notifications of updates to that list will be done in accordance with Section 14 of the DPA.

2.4. Customer represents and warrants that it has obtained all necessary rights, approvals, and consents for its use of Input. For purposes of these Terms, both Input and Output constitute additional Customer Content as that term is defined in the Agreement. Customer will retain all ownership of Customer Content, as permitted under applicable law.

3. RESTRICTIONS

3.1. Customer's use of AI Functionality will comply with the Acceptable Use Policy available at <https://about.gitlab.com/terms/current-terms-of-use>.

3.2. Notwithstanding anything to the contrary in these Terms, Customer acknowledges and agrees that (a) AI Functionality may generate the same, or similar, output for GitLab or other third-party end users (e.g., customers, partners), and (b) Customer has no claim of right, title, or interest against GitLab or third-party end users to the extent such claim relates to the same, or similar output generated for GitLab or other third-party end users.

3.3. Customer represents and warrants that it will not use AI Functionality to create, train, or improve (directly or indirectly) a similar or competing foundational or large language model or other generative artificial intelligence service that competes with the provider of the applicable GitLab Model or Customer Model.

3.4. Customer represents and warrants that it will not reverse engineer, extract, or discover the data, models, model weights, algorithms, safety features, or operation of the GitLab Models or Customer Models.

4. ADDITIONAL DISCLAIMERS

4.1. Customer acknowledges and agrees that (a) Output, its use, and Actions may be unreliable, insecure, inaccurate, or offensive, (b) Customer will evaluate all Output and Actions before relying on, or making use of, such Output or Actions, (c) Customer is responsible for ensuring any Output incorporated into Customer intellectual property complies with third-party intellectual property rights, and (d) AI Functionality and its Output and Actions are not designed for or intended to be used for meeting Customer's compliance with applicable laws or regulatory obligations.

4.2. GitLab is not responsible for the availability or accuracy of the products or services of any third-party provider of GitLab Models.

5. AI INDEMNIFICATION, LIMITATION OF LIABILITY

5.1. Except as otherwise provided in this Section 5, the applicable provisions of the Agreement will govern each party's indemnification obligations and limitation of liability with regard to Customer's use of AI Functionality. GitLab's obligations under Section 10.1 of the Agreement will also apply to Customer Claims related to Output generated by AI Functionality powered by GitLab Models (·Output Claim·). GitLab will not have any obligations under Section 10.1 of the

Agreement with regard to an Output Claim if (a) AI Functionality is provided as Free Software or (b) the Output is (i) modified by Customer, (ii) generated in response to Input that Customer does not have a valid right to use, (iii) combined with other products, processes, or materials, or (iv) known, or should have been known, by Customer to infringe or otherwise misappropriate a third party's intellectual property rights. Customer's obligations under Section 10.2 of the Agreement will only apply to modified Output.

5.2. Subject to Section 5.1 above, GitLab will be responsible for the costs and fees associated with the defense of an Output Claim. GitLab will retain sole control over the defense and settlement of an Output Claim, including the selection of counsel, provided Customer may participate in and observe the proceedings at its own cost and expense with counsel of its own choosing. GitLab will not settle any Output Claim that results in a finding of liability or fault with regard to Customer.

6. TERM AND TERMINATION

These Terms will commence upon the Effective Date and will automatically expire upon (a) expiration or termination of the Agreement, or (b) expiration or termination of the underlying Subscription to AI Functionality. The parties may terminate these Terms as provided in the Agreement. Upon expiration or termination of these Terms, Customer will immediately discontinue all use of the AI Functionality. The rights and obligations of these Terms which by their nature are intended to survive termination or expiration of these Terms will survive.

7. MISCELLANEOUS

Capitalized terms used but not defined in these Terms will have the meaning in the Agreement or DPA. Except as provided in these Terms, the Agreement remains in full force and effect and governs Customer's access to and use of GitLab's Software. To the extent of any conflict or inconsistency between these Terms and the Agreement, these Terms will control.

SECTION: legal/anti-corruption-policy.md

THIS POLICY WAS APPROVED BY THE BOARD OF DIRECTORS OF THE COMPANY ON SEPTEMBER 2020. THIS POLICY IS PROVIDED FOR INFORMATIONAL PURPOSES ONLY. AN EXECUTABLE COPY OF THIS POLICY, INCLUDING THE TEAM MEMBERS CERTIFICATION REGARDING COMPLIANCE AND UNDERSTANDING, IS REQUIRED TO BE SIGNED BY GITLAB TEAM MEMBERS.

PURPOSE

GitLab Inc., including any of its subsidiaries or affiliates ("GitLab", "we", "our" or the "Company") is committed to promoting the highest standards of ethical business conduct and to compliance with all applicable laws, rules, and regulations. As part of this commitment, all GitLab team members, including individuals employed by or acting on behalf of Company, its officers and member of its board of directors, consultants, agents, other representatives and channel partners ("Team Members and Partners") are required to comply with the Foreign Corrupt Practices Act ("FCPA"), and anti-bribery laws and regulation in foreign jurisdictions, including but not limited to the UK Bribery Act 2010 and the European Commission on Anti-Corruption, other anti-bribery laws, and local laws designed to prevent improper bribes

(collectively, all of these laws are referred to as the "Anti-Corruption Laws"). The policies set forth in this document are referred to as the Company's "Anti-Corruption Policy." In addition to compliance with the Anti-Corruption Laws, all Team Members and Partners are required to comply with the Anti-Corruption Policy and any procedures adopted by the Company to implement this Policy.

PROHIBITED CONDUCT

GitLab and Team Members and Partners are prohibited from authorizing, making, offering, promising, requesting, receiving or accepting bribes or accepting kickbacks in any form. This prohibition applies to all forms of bribery, including commercial bribery as well as bribery of government employees or officials.

The Anti-Corruption Laws prohibiting bribery are very broad, so that many kinds of gifts or entertainment provided to government employees or officials might be considered improper. For that reason, Team Members and Partners may not give anything of value to any government employee or official in order to wrongfully influence the government employee or official, obtain or retain business or receive any improper advantage. This prohibition applies regardless of whether the payment or offer of payment is made directly to the government employee or official or indirectly through a third party. As discussed in more detail below, it is critical to understand that, for purposes of the Anti-Corruption Laws, the terms "government official" generally includes any employee of a company that is owned or controlled by a government or governmental agency. By way of example, this means that someone working for a telecom, energy company, internet company or hospital in another country that is owned or controlled by that country's government is a "government official." In other words, for purposes of the Anti-Corruption Laws, this term is much broader than how we think about "government officials" in the United States.

Examples of prohibited conduct include:

1. payments made directly to a government employee or official for an improper purpose;
1. payments or gifts to third parties where Team Members and Partners know or have reason to know that at least a portion of the payments or gifts is likely to be offered by the third party to a government employee or official for an improper purpose;
1. acts "in furtherance of" an improper payment, such as arranging for funds to be available for the improper payment; and
1. payments to retain assets, such as an "under the table" payment to a tax official to settle a tax claim.

It is important to avoid even the appearance of impropriety. If you have any questions about whether a payment may be improper or violate this Policy, consult the Company's Chief Legal Officer before any payment or offer is made.

IMPORTANT CONCEPTS

Who is a "government official"?

"Government official" includes:

1. any official or employee of a government, including any political party, administrative agency, or government-owned business;

1. any person acting in an official capacity on behalf of a government entity;
1. employees or agents of a business which is owned or controlled by a government;
1. any person or firm employed by or acting for or on behalf of any government;
1. any political party official, employee or agent of a political party, or candidate for political office (or political party position); and
1. any family member or other representative of any of the above.

Any doubts about whether a particular person is a government official should be resolved by assuming that the individual involved is a government official for purposes of the FCPA or the Anti-Corruption Laws.

What does "anything of value" mean?

"Anything of value" includes money and monetary equivalents (such as gambling chips and gift cards), entertainment, accommodations, and any other benefit. There is no "minimum" required under the FCPA - any amount can be sufficient to trigger a violation.

What is an "improper advantage"?

An "improper advantage" includes payments intended to wrongfully:

1. influence a decision by a government official, including a failure to perform their official functions;
1. induce a government official to use their influence to affect a decision by someone else in their government; and
1. induce a government official to use their influence to affect or influence any act or decision.

In addition to obtaining or retaining business, "improper advantage" includes reducing taxes, or duties, "looking the other way" at minor code or rule violations, and any form of preferential treatment.

GIFTS, ENTERTAINMENT, TRAVEL & PROMOTIONAL EXPENDITURES

Gifts in the business context can be an appropriate way for businesspeople to display respect for each other. GitLab expects the use of good judgment and moderation when giving or receiving entertainment or gifts. No gift or entertainment should ever be offered, given, provided or accepted by Team Members and Partners unless it:

1. is reasonable and not extravagant;
1. is appropriate under the circumstances and serves a valid business purpose;
1. is customary and appropriate under U.S. and local customs;
1. is not being offered for any improper purpose, and could not be construed as a bribe, kickback or payoff;
1. does not violate any Company policy;
1. does not violate any U.S., local or international laws or regulations; and
1. is accurately described in your expense or other reports and Company's books and records.

It is essential that Team Members and Partners accurately report expenditures for gifts or entertainment so that the purpose, amount, and recipient of the gift are obvious (i.e., transparent) to personnel in the Company's Finance Team and other personnel who have responsibility for ensuring that our financial books and records are accurate and reviewing

these books and records. Expense reports should accurately state the purpose of the expenditures and the identities of the individuals receiving the gifts or entertainment and state whether the gift or entertainment was given to a government employee or official.

1. Significant legal restrictions apply with regard to providing gifts, entertainment, travel and promotional expenditures related to government officials. Team Members and Partners must make sure they fully understand all such restrictions and associated policies and procedures.

In each instance:

1. all gifts, entertainment, or promotional expenses which are intended to induce a government employee or official to misuse their position or to obtain an improper advantage are prohibited, regardless of their value;

1. expenses must have a valid business purpose and be reasonable and necessary under the circumstances;

1. gifts must be of token value (such as shirts or tote bags that reflect Company's business name and/or logo), legal and customary, and openly given; and

1. expenses and gifts must be fully and accurately reflected in the Company's books and records and backed by receipts.

Team Members and Partners should avoid even the appearance of impropriety. Any gift or expense that is lavish or might otherwise prove embarrassing for the Company is prohibited. If Team Members and Partners have any question regarding the appropriateness of any gift or expense, they should consult the CLO prior to giving the gift or incurring the expense.

FACILITATING PAYMENTS

The FCPA and other anti-bribery laws may provide limited exceptions for certain minor payments for the purpose of facilitating or expediting routine, lawful services or non-discretionary administrative actions, such as telephone installation. However, other anti-corruption laws prohibit such payments. Any and all facilitating payments require prior written approval from the CLO.

REPRESENTATIVES, PARTNERS, CONSULTANTS, DISTRIBUTORS, AGENTS AND OTHER THIRD PARTY

Before initiating a relationship with a representative, partner, consultant, distributor, agent, or other third party, Team Members and Partners must conduct appropriate due diligence to assure that the representative will not engage in any improper conduct. This is for several important reasons, including that the Company can be held responsible for a third party's conduct in certain circumstances under the Anti-Corruption Laws. Due diligence typically will include considering such factors as:

- the third party's qualifications for the position or task at issue;
- whether the third party has personal or professional ties to the government or any government official;
- the number and reputation of the third party's clientele and the representative's reputation with the United States Embassy or Consulate, local bankers, clients, and other business associates; and
- the reasonableness of the compensation.

Consult the CLO regarding the appropriate due diligence procedure for your situation.

The Company must terminate contracts with any third party who is unwilling or unable to represent the Company in a manner consistent with this Anti-Corruption Policy.

RED FLAGS RELATED TO THIRD PARTIES

While conducting due diligence and throughout any subsequent relationship with third parties, Team Members and Partners must monitor for any "red flags." A "red flag" is a fact or circumstance that requires additional consideration and extra caution. Red flags must be considered in context rather than in isolation. Red flags may appear in many forms and can include:

1. payments in a country with a history or reputation for corruption;
1. refusal to provide a certification of compliance with the FCPA or other anti-bribery laws;
1. unusual payment patterns or requests, including payments to third parties, in cash, and payments made to bank accounts outside the country;
1. representations or boasting about influence or connections;
1. use of a shell or holding company that obscures ownership without credible explanation;
1. accusations of improper business practices (credible rumors or media reports, etc.);
1. family or business relationship with the government or a government official;
1. requests for payments "up front" or statements that a particular amount of money is needed to "get the business," "make the necessary arrangements," or similar expressions;
1. unusually high commissions, agents' fees, or payments for goods or services;
1. apparent lack of qualifications or resources;
1. whether the representative or joint venture partner has been recommended by an official of the potential government customer;
1. requests to be able to make agreements without the Company's approval; and
1. requests that agreements or communications be kept secret (other than a customary nondisclosure or confidentiality agreement).

Team Members and Partners are responsible for monitoring their email and other communications and documents for red flags. Any red flags should be brought promptly to the attention of your supervisor or the CLO. Failure to do so is considered a violation of this Anti-Corruption Policy.

POLITICAL CONTRIBUTIONS

The Company reserves the right to communicate its position on important issues to elected representatives and other government officials. It is, however, always the Company's policy to comply fully with all applicable laws regarding political contributions. Donations to political campaigns or causes could violate campaign finance laws and Anti-Corruption Laws, especially if contributions are made to a campaign at the request or suggestion of a government official.

To mitigate the risk of an improper payment or the appearance of an improper payment, no Company funds, facilities, or services of any kind may be provided to any government official, including any candidate or prospective candidate for public office, to any political party, or to any political initiative, referendum, or other form of political campaign unless pre-approved in writing by the CLO.

CHARITABLE CONTRIBUTIONS

The Company is committed to improving and promoting the interests of the communities where it operates. Donations to charitable organizations, however, can, like political contributions, present a risk under the Anti-Corruption Laws, particularly if they are made at the request or suggestion of a government official. Therefore, Team Members and Partners must obtain prior written approval from the CLO before making any charitable donation on behalf of the Company or using Company funds, directly or indirectly.

BOOKS AND RECORDS

All Team Members must maintain accurate records of all transactions and assist in ensuring that the Company's books and records accurately and fairly reflect, with appropriate detail, all transactions, expenses, or other dispositions of assets. To that end, all Team Members are prohibited from falsifying any business or accounting record and must truthfully report and record all dispositions of assets. Undisclosed or unrecorded funds or assets for any purpose are prohibited.

Any questions on how to record transactions should be referred to the CLO.

In addition to the guidelines set forth above, all Team Members and Partners must comply with the Company's Code of Business Conduct and Ethics.

REPORTING BREACHES OF THIS ANTI-CORRUPTION POLICY

Compliance with this Anti-Corruption Policy is, first and foremost, the individual responsibility of each and every Team Member and Partner. All Team Members and Partners must report, in person or in writing, any known or suspected violations of this Policy to the CLO or in a manner consistent with the Company's Whistleblower Policy. Per the Company's Whistleblower Policy, concerns regarding improper or illegal conduct can be reported in several ways, including by: (i) reporting the known or suspected violation to your manager and/or supervisor; (ii) reporting your concerns to the CLO, Robin Schulman, at CLO@gitlab.com (iii) calling the Company's Whistleblower Reporting Hotline at 1-833-756-0853 or online at <https://gitlab.ethicspoint.com/> and/or by email addressed to the Company's Audit Committee or Legal Team, sent to the Company's Corporate Secretary, Robin Schulman, CLO@gitlab.com marked Attention: "Audit Committee" or "Chief Legal Officer".

You can also submit any questions you may have regarding the Anti-Corruption Policy to the Company's Whistleblower Reporting Hotline number or email address. Any questions or reports of concerns regarding improper or illegal conduct will be addressed promptly and can be made anonymously.

GitLab will not allow any retaliation against any Team Members and Partners who act in good faith in reporting any violation of this Policy. The Company encourages and highly values reporting of conduct that may violate the Anti-Corruption Laws. Per the Company's Whistleblower Policy, the Company will investigate reported violations and will determine an appropriate response, including corrective action and preventive measures as appropriate. For further information regarding the manner in which the Company handles reports related to concerns of improper or illegal conduct, please review the Company's Whistleblower Policy.

PERIODIC REVIEW

The CLO or a designee will conduct a periodic review to confirm the adequacy and effective implementation of this Anti-Corruption Policy.

CERTIFICATION AND ENFORCEMENT

From time to time, GitLab's Team Members and Partners may be required to complete training regarding the FCPA and, more broadly, the Anti-Corruption Laws and sign a certification acknowledging commitment to, full understanding of, and compliance with this Anti-Corruption Policy. The acknowledgment statement shall be included in the personnel file of each Team Member and Partner. Any Team Member or Partners who violate this Policy or who fail to make or falsify any certification required under this Policy may be subject to disciplinary action, up to and including termination of employment or of the business relationship.

TEAM MEMBER CERTIFICATION REGARDING COMPLIANCE WITH ANTI-CORRUPTION POLICY

I have read and understand the Anti-Corruption Policy (the "Anti-Corruption Policy") of GitLab Inc. ("GitLab" or "Company"). I undertake to comply with the provisions of the Anti-Corruption Policy. I hereby represent that:

1. Except as disclosed below, I have not participated in, and am not aware of, any violation of the Foreign Corrupt Practices Act ("FCPA") or the Anti-Corruption Policy by myself or any other Team Member, agent, individual, or entity acting on behalf of or as a representative, channel partner, vendor, consultant, or business partner of GitLab. I hereby represent that:

- I have not paid, offered, promised to pay (or authorized any payment or offer of) money or anything of value, directly or indirectly, to any government employee or official in order to wrongfully influence the government official, obtain or retain business, direct business to any person, induce a government official to use his or her influence to affect or influence any act or decision, or receive any improper advantage.

- I am not aware of, and have no reason to believe that, any Team Member, agent, individual, or entity acting on behalf of or as a representative, channel partner, vendor, consultant, or business partner of GitLab has paid, offered, promised to pay (or authorized any payment or offer of) money or anything of value, directly or indirectly, to any government employee or official in order to wrongfully influence the government employee or official, obtain or retain business, direct business to any person, induce a government employee or official to use his or her influence to affect or influence any act or decision, or receive any improper advantage.

- I shall not pay, offer, promise to pay (or authorize any payment or offer of) money or anything of value, directly or indirectly, to any government employee or official in order to wrongfully influence the government official, obtain or retain business, direct business to any person, induce a government official to use his or her influence to affect or influence any act or decision, or receive an improper advantage.

1. Should I ever obtain information giving me reason to believe that any Team Member, agent, individual, or entity acting on behalf of GitLab may have engaged in conduct that violates the FCPA or the Anti-Corruption Policy, I undertake to report that information promptly to the Chief Legal Officer of the Company.

I have engaged in or observed the following incidents of potential non-compliance:

I understand that a false, misleading or incomplete statement in this certification of compliance or other violation of the Anti-Corruption Policy may be grounds for termination of

employment or of the business relationship.

SECTION: legal/anti-fraud-policy.md

- Effective Date: October 3, 2022

- Approved By: Robin Schulman, Chief Legal Officer, Head of Corporate Affairs, and Corporate Secretary

GitLab Inc. (collectively with its subsidiaries, "GitLab", "we", "our") is committed to the highest standards of legal and ethical business conduct and has long operated its business consistent with written operating principles and policies that reinforce this commitment. In furtherance of those standards, this Anti-Fraud Policy (this "Policy") applies to all officers, employees and direct and indirect contractors of GitLab and of its direct and indirect subsidiaries ("Team Members"). Compliance with this Policy is mandatory for every Team Member and member of GitLab's Board of Directors ("Director"). In addition to this Policy, Team Members and Directors are subject to and must comply with other policies (including GitLab's Code of Business Conduct and Ethics for Directors, Officers, Employees and Contractors (the "Code of Business Conduct and Ethics") and programs of GitLab, as applicable. We expect each Team Member and Director to read and become familiar with this Policy. Violations of the law, our corporate policies, or this Policy may result in disciplinary action, including dismissal.

INTRODUCTION

This Policy outlines the principles to which we are committed in relation to preventing, reporting, and remediating fraud and corruption. As described in the Code of Business Conduct and Ethics, all Team Members are required to deal honestly, ethically and fairly with customers, partners, suppliers, competitors and other third parties. No Team Member or Director may knowingly, directly or indirectly, partake in, assist or otherwise be involved in any fraud.

OBJECTIVES

The primary objective of this Policy is to prevent fraud, help maintain GitLab's culture of compliance, help maintain integrity in GitLab's business dealings, establish procedures and protections that allow Team Members to act on suspected fraud or corruption with potentially adverse ramifications and to achieve GitLab's legitimate business objectives.

DEFINITION

In the broadest sense, fraud can encompass any crime for gain that uses deception as its principal method of operation. More precisely, fraud is defined as knowingly misrepresenting the truth or concealing a material fact in order to induce another person to act to their detriment. Fraud may involve:

- manipulation, falsification or alteration of accounting records or documents;
- documents or statements (written or oral) that were not authorized or approved by the appropriate team members;
- hiding, omitting or covering up impact of transactions, whether by not recording such impact,

not maintaining appropriate records and documentation or not including relevant details in the applicable records or documents;

- recording of transactions without substance;
- misappropriation (theft) or willful destruction or loss of assets including cash;
- deliberate misapplication of accounting or other regulations or policies;
- bribery and corruption;
- manipulation of information system applications and data for personal gain;
- usurpation of corporate interests for personal gain;
- payment or receipts of bribes, kickbacks or other inappropriate payments;
- participation in sham or fraudulent transactions; and
- disclosing confidential and proprietary information to outside parties.

There is no set monetary threshold that defines fraud. There is no need to be successful to be viewed as corrupt; the offering can be enough to amount to a criminal offense in certain jurisdictions. These principles apply equally in any country in which GitLab operates or carries on business.

TEAM MEMBER AND DIRECTOR RESPONSIBILITY & REPORTING

All Team Members and Directors, regardless of position or title, have a stewardship responsibility with regard to GitLab's funds and other assets. Team Members and Directors are responsible for safeguarding GitLab's resources and ensuring that those resources are used only for authorized purposes in accordance with GitLab's rules, policies, and applicable laws.

- When fraud is suspected, observed, or otherwise made known to a Team Member, the Team Member must immediately report the activity to their direct supervisor (who shall notify GitLab's Chief Legal Officer (the "CLO")). In the event a Director is aware of or notified of suspected or observed fraud, the Director shall notify the CLO, Chair of the Audit Committee or outside counsel, as appropriate.
- If the Team Member has reason to believe their direct supervisor may be involved in fraudulent activity, the Team Member is obligated to report the activity to the CLO.
- The reporting Team Member shall refrain from discussing the matter with any Team Member unless directed to do so by the CLO.
- You may report the matter confidentially by directly contacting your direct supervisor (who shall notify the CLO) or the CLO or confidentially and anonymously via EthicsPoint (as more fully described in the Code of Business Conduct and Ethics). EthicsPoint toll free numbers and other methods of reporting are available 24 hours a day, 7 days a week for use by Team Members:
 - Website: <https://gitlab.ethicspoint.com/>
 - Mobile intake site: <https://gitlab.navexone.com/>
 - USA Telephone: toll-free at 1-833-756-0853
 - All other countries: to view phone numbers, please see web intake site and select the country in which you are located from the drop-down menu. If your country is not listed, please select the "Make a Report" link at the top of the page to access the confidential reporting tool.
- All Team Members shall cooperate fully with any investigation performed by GitLab (or its representatives including outside counsel) and/or law enforcement officials.

NON-RETALIATION POLICY

As every Team Member is free to raise concerns regarding any questionable practices without

fear of harassment or retaliation, GitLab will not allow any retaliation against any Team Member who acts in good faith in reporting any violation of this Policy or against any person who is assisting in good faith in any investigation or process with respect to such a report. Any Team Member who participates in any such retaliation is subject to disciplinary action, including termination.

MANAGERIAL RESPONSIBILITY

Each Team Member who is a manager is responsible for detecting and preventing fraudulent activities in their respective work areas. Each Team Member who is a manager will be familiar with the types of activities that constitute fraud and be alert for any indication that improper or dishonest activity is or was in existence in their work area.

- If a manager suspects fraud, or has received a report of fraud from a Team Member, they must immediately contact the CLO. The CLO shall promptly report to the Chair of the Audit Committee of GitLab's Board of Directors and GitLab's Internal Audit Team with respect to any conduct believed to be a violation of this Policy, and inform any other GitLab e-group member as appropriate.
- Upon investigation, if the CLO determines that fraud exists, the CLO shall take immediate remedial action to halt the fraudulent activity. If criminal activity has occurred, the CLO may report the activity to appropriate law enforcement officials.
- All management personnel shall cooperate fully with any investigation performed by GitLab (or its representatives including outside counsel) and/or law enforcement officials.
- Following all incidents of fraud, and on at least an annual basis, GitLab's Finance and Internal Audit Teams shall conduct a review of all internal controls, policies and procedures for the prevention and detection of fraud and, following consultation with the CLO and outside advisors and counsel as appropriate, implement new and/or modified controls when necessary.

CONFIDENTIALITY

All participants in a fraud investigation shall treat all information received confidentially. A person reporting suspected fraud may remain anonymous except as otherwise required by law. Investigation results will not be disclosed or discussed with anyone other than those who have a legitimate need to know. Any Team Member or Director contacted by the media with respect to a fraud investigation shall refer the media person to GitLab's public relations team at press@gitlab.com.

INVESTIGATION AND DISCIPLINE

During an investigation of allegations of fraud or suspected fraud, the Team Member(s) suspected of such fraud may be placed on administrative leave pending the outcome of the investigation). Any Team Member who has committed fraud will be subject to disciplinary action up to and including dismissal. In all cases, GitLab reserves the right to refer the matter to appropriate law enforcement officials for independent review, investigation and/or prosecution.

ADMINISTRATION OF THIS POLICY

The CLO is responsible for the administration, revision, interpretation and application of this Policy. This Policy will be reviewed annually and, if necessary, revised.

SECTION: legal/anti-retaliation-policy.md

GITLAB INC.

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ANTI-RETALIATION POLICY

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- Effective Date: 21 April 2023

- Approved By: Robin Schulman, Chief Legal Officer, Head of Corporate Affairs, and Corporate Secretary

Objective

The purpose of this Anti-Retaliation Policy is to establish guidance for reporting ethics or compliance concerns or other inappropriate behavior while providing protection against retaliation for reporting in good faith. This Anti-Retaliation Policy is in addition to, and does not replace or supersede the anti-retaliation provisions set out in any policies that include anti-retaliation provisions.

Introduction

Choosing to speak up about workplace concerns helps build a healthy, ethical, and compliant company, meets our company values of collaboration and transparency, and is part of our culture of compliance. GitLab Inc. (collectively with its subsidiaries, "GitLab", "we", "our") does not tolerate retaliation against anyone who, in good faith, reports suspected misconduct, or anyone who provides assistance in an investigation. Coming forward with questions or concerns may sometimes feel like a difficult decision, but GitLab is committed to fostering an environment that does not deter individuals from engaging in frank, honest communication. In furtherance of those standards, this Anti-Retaliation Policy (this "Policy") applies to all officers, employees, and direct and indirect contractors of GitLab and of its direct and indirect subsidiaries (each a "Team Member"). Compliance with this Policy is mandatory for every Team Member and member of GitLab's Board of Directors ("Director"). In addition to this Policy, Team Members and Directors are subject to and must comply with other policies (including GitLab's Code of Business Conduct and Ethics for Directors, Officers, Employees and Contractors (the "Code of Business Conduct and Ethics")) and programs of GitLab, as applicable. We expect each Team Member and Director to read and become familiar with this Policy.

Zero Tolerance for Retaliation

GitLab strictly prohibits any form of retaliatory action against any Team Member who in good faith raises issues, asks questions, makes reports, participates in an investigation, refuses to participate in suspected improper or wrongful activity, or exercises workplace rights protected by law (in each case, "Protected Activity"). Situations or behaviors that could lead to a Team Member engaging in a Protected Activity include, but are not limited to:

- raising concerns in good faith regarding fraud, unethical or unprofessional business conduct, or noncompliance with GitLab policies/procedures;

- lodging a good faith internal complaint (written or oral) specifically opposing unlawful discrimination or harassment or any alleged violations of local law;
- participating in an internal investigation into allegations of discrimination or harassment;
- filing a good faith complaint of unlawful discrimination or harassment with the relevant regulatory, law enforcement, or administrative body in a Team Member's jurisdiction;
- supporting another Team Member's internal or administrative complaint of unlawful discrimination (by, for example, testifying or providing an affidavit in support of a coworker who has filed a discrimination complaint);
- participating in an investigation or audit conducted by any regulatory, administrative or law enforcement body;
- requesting an accommodation under relevant statutes;
- requesting or taking any statutory/required leave;
- reporting an actual or suspected wrongdoing under any of GitLab's whistleblower policies; or
- making a disclosure protected by relevant local laws.

All forms of unlawful retaliation or penalization are prohibited. A non-exhaustive list of examples includes:

- suspension, lay-off/redundancy or dismissal;
- demotion or loss of opportunity for promotion;
- transfer of duties;
- reduction in wages or change in working hours;
- imposition or administering of any discipline or reprimand;
- unfair treatment;
- coercion, intimidation or harassment;
- discrimination or disadvantage;
- injury, damage or loss;
- threat of reprisal; or
- other unfavorable treatment connected with raising a concern.

Any Team Member who participates, directly or indirectly, in any such retaliation will be subject to disciplinary action, up to and including termination.

GitLab prohibits retaliation even if the concerns raised in good faith are not confirmed or substantiated following an investigation. However, a Team Member may be subject to disciplinary action, up to and including termination, if the Team Member knowingly made a false allegation, provided false or misleading information in the course of an investigation, or otherwise acted in bad faith.

This Policy does not exempt Team Members from the consequences of their own misconduct, and self-reporting such issues is not Protected Activity. This Policy also does not prevent GitLab from managing Team Member performance and/or addressing conduct issues after a Team Member has engaged in Protected Activity, so long as Protected Activity is not the reason for the performance management or disciplinary action.

Reporting Procedure

If you believe you have been retaliated against, you should report it immediately. Complaints can be raised verbally or in writing. A report should be as detailed as possible, including the names of all individuals involved and any witnesses. The following are ways you can report retaliation:

- Report it to your immediate manager; and/or
- Report it to GitLab's Chief Legal Officer if you have reason to believe your immediate manager is involved; and/or
- Report it to the next level of management; and/or
- Report it to a People Business Partner or Team Member Relations; and/or
- Anonymously through Lighthouse Services

GitLab will follow up on your report within the time period as required by local jurisdiction, which, depending on local requirements, could include an assessment to determine whether there is evidence that retaliatory conduct has taken place, appropriate action to address any wrongdoing (having due regard to the nature and seriousness of the matter concerned), or, where there is no evidence that retaliatory conduct has occurred, communication of the decision to the reporting Team Member.

The Role of Managers

If managers become aware of misconduct, they must address it as soon as they become aware and manage it seriously, confidentially, and fairly, whether or not there has been a written or formal complaint made.

Informed managers are expected to:

- take all complaints or concerns of alleged misconduct seriously no matter how minor or who is involved;
- ensure that any form of misconduct is immediately reported to a People Business Partner or Team Member Relations; and
- take appropriate action to prevent retaliation, or the alleged misconduct from recurring, during and after an investigation.
- Managers who knowingly allow or tolerate any form of misconduct or retaliation, including the failure to immediately report such misconduct or retaliation, are in violation of this Policy, and may also be subject to disciplinary action, up to and including termination.

Administration of this Policy

Team Member Relations is responsible for the administration of this Policy. If you have any questions regarding this Policy or questions about retaliation that are not addressed in this Policy, please contact teammemberrelations@gitlab.com.

Violations of this Policy

Any Team Member, regardless of position or title, who has been determined, after investigation, to have engaged in retaliation in violation of this Policy, will be subject to discipline, up to and including termination of employment.

Team Members Covered Under a Collective Bargaining Agreement

The employment terms set out in this Policy work in conjunction with, and do not replace, amend, or supplement any terms or conditions of employment stated in any collective bargaining agreement.

Conduct Not Prohibited by this Policy

This Policy is not intended to restrict communications or actions protected or required by any applicable laws.

Scope of this Policy

This Policy is in addition to, and does not replace or supersede the anti-retaliation provisions set out in any policies that include anti-retaliation provisions including, without limitation:

- Code of Business Conduct and Ethics
- Anti-Fraud Policy
- Whistleblower Policy
- Leave of Absence Policies
- Protected Disclosures Policy
- Anti-Harassment Policy

Current and Past Versions

A PDF of the current version of the policy is available [here](#). If/when the policy is updated, PDFs of previous versions will be made available [here](#) for transparency.

SECTION: legal/api-terms.md

A. These API Terms of Use ("API Terms") form a binding contract between you and GitLab and explain your rights and obligations when using GitLab's publicly-available application programming interfaces (the "GitLab APIs").

B. "We", "our" and "us" refers to GitLab Inc. and "you" and "your" refers to the individual, or company or other legal entity, on behalf of which the GitLab APIs are used.

C. If you are using the GitLab APIs on behalf of a company or other legal entity, you represent that you have the authority to bind such entity to these API Terms. If you do not have such authority, or do not agree with these API Terms, you must not use the GitLab APIs.

D. These API Terms do not apply to your use of the software, and other products and services, made available by GitLab (the "GitLab Software"), including without limitation, the self-managed and SaaS versions of GitLab's DevOps Lifecycle Application Platform. Your use of the GitLab Software is subject to a separate written agreement between you and GitLab or one of its affiliates entered into prior to such use.

E. We may revise these API Terms from time to time at our sole discretion. All changes are effective immediately when posted. Your continued use of the GitLab APIs following the posting of revised API Terms signifies your acceptance of the revised API Terms.

F. In the event of an inconsistency between these API Terms and those of an agreement governing (i) your use of the GitLab Software; or (ii) your partnership with GitLab, the provisions of

such other agreement(s) will prevail to the extent of such inconsistency.

1. License and Use

1.1. Provided that you comply with these API Terms, all documentation relating to the GitLab APIs at docs.gitlab.com and developer.gitlab.com, and all applicable laws, we grant you a non-exclusive, non-transferable, non-sublicensable, revocable, limited right to access and use the GitLab APIs to:

1.1.1. Develop, test and support any application or integration developed by you which interacts with the GitLab APIs (each, an "Integration") and;

1.1.2. Distribute, or allow third parties to access, your Integration.

1.2. You acknowledge that there are no implied licenses granted under these API Terms, and we reserve all rights not expressly granted.

1.3. When using, or attempting to use, the GitLab APIs, you agree:

1.3.1. To adhere to the applicable access requirements set out in the GitLab API Documentation;

1.3.2. Not to share any API keys or authentication tokens for the GitLab APIs with any third party, and to keep these secure at all times;

1.3.3. Not to misrepresent or mask either your identity or your systems' identity;

1.3.4. Not to remove any proprietary notices from the GitLab APIs;

1.3.5. That to protect the security, integrity, and operability of the GitLab APIs, GitLab may place limits on your use of the GitLab APIs (like limits on call volumes or requests that can be sent and received by the GitLab APIs during a defined period of time). You accept that:

1.3.5.1. GitLab, in its sole discretion, will determine what constitutes abuse or excessive usage of the GitLab APIs;

1.3.5.2. You will not use, or attempt to use, the GitLab APIs in a manner that exceeds such limitations, including rate limits, or in a manner that constitutes excessive or abusive usage; and

1.3.5.3. GitLab may monitor the volume of requests sent to the GitLab APIs for compliance with

these API Terms;

1.3.6. Not to use the GitLab APIs in any manner that poses a security risk to other users of the GitLab APIs or GitLab Software, or tests the vulnerability of our systems or networks or those of any third party;

1.3.7. Not to use the GitLab APIs for competitive analysis, or to disseminate performance information (including uptime, response time, and benchmarks), relating to the GitLab APIs or the GitLab Software;

1.3.8. Not to use the GitLab APIs in any manner or for any purpose that infringes, misappropriates, or otherwise violates the rights of any third party;

1.3.9. Not to use the GitLab APIs for the bulk collection or scraping of information.

1.4. We reserve the right to terminate your access to the GitLab APIs at any time and at our discretion, if you are, or are suspected of being, in violation of these API Terms.

2. Intellectual Property

2.1. We own all rights, title, and interest in the GitLab APIs and the GitLab Software. By using the GitLab APIs, you do not acquire ownership of any rights in them, or the content that is accessed through them.

2.2. Subject to section 2.1, you own all rights, title, and interest in any Integrations.

2.3. GitLab will retain all intellectual property rights relating to any suggestions, ideas, enhancement requests, feedback, or other recommendations you provide relating to the GitLab APIs and GitLab Software ("Feedback Materials"), which are hereby assigned to GitLab. Feedback Materials will not include any intellectual property owned by you.

2.4. Your use of any registered or unregistered GitLab trademarks is subject to the GitLab Trademark Guidelines and Branding Standards, as updated from time to time.

3. Processing of Personal Data

Any personal data processed related to your use of the GitLab APIs will be processed in accordance with GitLab's Privacy Policy.

4. Export

The GitLab APIs are subject to US global trade control laws and regulations, including the U.S. Export Administration Regulations and various sanctions programs administered by the U.S. Office of Foreign Assets Control. You will not, directly or indirectly, export, re-export, release, or make the APIs available for use, in contravention with these laws and regulations.

5. Warranty and Indemnification

5.1. EXCEPT AS EXPRESSLY STATED HEREIN, ANYTHING PROVIDED IN CONNECTION WITH THESE API TERMS, INCLUDING, WITHOUT LIMITATION, THE GITLAB APIS, IS PROVIDED "AS-IS", WITHOUT ANY WARRANTY OF ANY KIND. EACH PARTY DISCLAIMS ANY IMPLIED WARRANTIES, INCLUDING, WITHOUT LIMITATION, ANY IMPLIED WARRANTIES OF MERCHANTABILITY OR FITNESS FOR A PARTICULAR PURPOSE.

5.2. You will indemnify, defend (at GitLab's request) and hold harmless GitLab and its affiliates and their respective directors, officers, employees, agents, contractors, end users, and licensees from and against any claims, losses, costs, expenses (including reasonable attorneys' fees), damages or liabilities based on or arising from (a) your Integration and any derivatives / combination of your Integration with the GitLab APIs (b) your relationships or interactions with any end users, or third-party distributors, of your Integration, or (c) your infringement of GitLab's or any third party's intellectual property rights. GitLab may at its own expense participate in the defense and settlement of any claim with its own counsel, and you may not settle a claim without GitLab's prior written consent (not to be unreasonably withheld).

6. Limitation of Liability

6.1. WITH THE EXCEPTION OF YOUR (A) INDEMNIFICATION OBLIGATIONS UNDER SECTION 5.2; AND (B) OBLIGATIONS UNDER SECTION 4 (EXPORT), TO THE MAXIMUM EXTENT PERMITTED BY LAW:

6.1.1. IN NO EVENT SHALL EITHER PARTY BE LIABLE TO THE OTHER FOR LOST PROFITS OR REVENUE OR LOSS OF USE OR DATA, COSTS OF COVER FOR GOODS OR SERVICES, OR FOR INCIDENTAL, CONSEQUENTIAL, PUNITIVE, SPECIAL OR EXEMPLARY DAMAGES, DIRECT OR INDIRECT DAMAGES OF ANY TYPE OR KIND, HOWEVER CAUSED, RELATED TO OR ARISING OUT OF OR FROM THESE API TERMS OR THE RIGHTS, LICENSES, PRODUCTS OR SERVICES PROVIDED UNDER THESE API TERMS, WHETHER OR NOT THE PARTY HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES; AND

6.1.2. THE TOTAL, CUMULATIVE LIABILITY OF EITHER PARTY ARISING OUT OF OR RELATED TO THESE API TERMS OR THE RIGHTS, LICENSES, PRODUCTS OR SERVICES PROVIDED UNDER THESE API TERMS, WHETHER BASED ON CONTRACT, TORT (INCLUDING NEGLIGENCE), OR ANY OTHER LEGAL THEORY, SHALL BE LIMITED TO FIVE HUNDRED U.S. DOLLARS (\$500.00).

7. Term and Termination

7.1. These API Terms shall remain in effect until terminated.

7.2. You may terminate these API Terms at any time by ceasing all use of the GitLab APIs and any relevant credentials.

7.3. GitLab reserves the right to terminate these API Terms or your use of the GitLab APIs with immediate effect for any reason and at any time without liability or other obligation to you.

7.4. Upon termination:

7.4.1. All licenses granted herein immediately expire and you must cease use of the GitLab APIs;

7.4.2. The terms of these API Terms that by their nature are intended to continue indefinitely will continue to apply.

8. Governing Law

These API Terms shall be construed and enforced in accordance with the laws of California, U.S.A., and you and GitLab submit to the jurisdiction of the State and Federal courts in San Francisco, California, without giving effect to any conflicts of laws principles.

SECTION: legal/competitor-discussion-guidelines.md

Guidelines on public discussion of competitor product features

These guidelines govern how to discuss and reference competitor product features and screenshots in public issues, GitLab documentation, and other public-facing media.

Scope

- Applies to: All public discussions of competitor product features and screenshots in public issues, GitLab documentation, and other public-facing forums, whether initiated by team members or community members.
- Does not apply to: Discussions in confidential issues, internal materials, or platforms accessible only to GitLab team members (like MURAL). For clarification on external vs. internal use, see the External vs. Internal Use section of the Materials Legal Review Process.
- Note that the term "Screenshots" when used within these guidelines includes screenshots and screen recordings from any source, including publicly available sources (YouTube videos, websites) and directly from competitor products.

Dos and don'ts

Do

- Initiate and engage in general discussions about competitor product features, including analysis of advantages and disadvantages.

Example: "collaborate.ly's new merge commit message implementation has an interesting approach to handling conflicts. GitLab solves this differently by..."

- Share screenshots obtained from publicly available sources (not from free trials or paid accounts) when providing illustration and commentary.

Example: Sharing a screenshot from a competitor's public documentation page to discuss UI differences.

- Engage in general discussions about competitor product features in response to screenshots shared by community members.

- Include competitor screenshots in GitLab documentation for reference purposes (for example, in migration instructions, integration guidance, or CI/CD usage in third-party repositories).

Example: Including screenshots in migration documentation that show where to find export options in the competitor's interface.

- Reach out to legal with any questions.

Do not

- Share competitor screenshots without accompanying commentary or critical analysis.

Example: Posting a competitor's dashboard screenshot with no context or discussion.

- Initiate, or engage in, discussions proposing plans to directly copy competitor features verbatim, with or without screenshots.

Example: "We should copy collaborate.ly's exact implementation of merge commit messages."

- Share screenshots taken directly from competitor products through the use of free trials or paid accounts for competitive benchmarking.

Example: Taking screenshots while logged into a competitor's product during a free trial period and sharing them publicly.

- Share screenshots that include competitor logos or third-party logos (except logos that are part of the product's user interface).

Example: Sharing a screenshot that shows a competitor's logo in the header or footer of their website.

For additional guidelines on competitive benchmarking, GitLab team members can refer to the internal-only Guidelines for use of third-party services for competitor benchmarking.

SECTION: legal/corporate-communications.md

THIS POLICY WAS APPROVED BY THE BOARD ON SEPTEMBER 14, 2021

PURPOSE

We encourage Team Members to be champions on behalf of GitLab Inc. (the "Company"), especially as you communicate with the outside world. The opportunities for the Company to communicate information to the world are evolving - and each Team Member is viewed by our customers, partners, stockholders and other outside parties as a potential representative of the Company. Whether or not you specifically reference or discuss your work, the things you say publicly are a reflection on the Company.

As a public company, we are committed to providing all legally required disclosures on a timely

basis to our stockholders, the public and regulatory agencies, and, at our discretion, may provide other meaningful and relevant information to our stockholders, potential investors and securities market professionals (such as investment analysts), as well as to the press and the general public. As part of this commitment, and in order to comply with applicable laws, the rules of the U.S. Securities and Exchange Commission ("SEC") and the rules, regulations and listing requirements of the stock exchange upon which our securities are listed for trading, we have adopted this Corporate Communications Policy ("Policy").

If you need help understanding this Policy, or how it applies in any given situation, please contact your supervisor or our Legal and Compliance Team, at compliance-legal.

PERSONS COVERED BY THIS POLICY

All employees, officers, contractors, consultants and members of the Company's board of directors (the "Board" and collectively "Team Members") are required to read and comply with this Policy.

ONLY OUR KEY SPOKESPERSONS MAY SPEAK FOR THE COMPANY

One of the ways we can ensure that we are abiding by the rules and regulations for communicating information about the Company to the public is to designate certain key people to speak publicly on behalf of the Company. Our key spokespersons will be our Chief Executive Officer, members of the Company's Board, our Chief Financial Officer and the head of the investor relations team. If needed, our key spokespersons may designate others within our Company to provide information on behalf of the Company or to respond to specific inquiries.

Only these key spokespersons, and any spokespersons explicitly designated as such, are authorized to make public disclosures of "material non-public information" about the Company that are reasonably expected to reach current or potential investors, the investment community, securities market professionals such as financial analysts, or the financial press - whether in the form of press releases, letters to stockholders, speeches, interviews, website posts, blogs, social media or other forms of communications.

WHAT IS MATERIAL NON-PUBLIC INFORMATION?

For a definition of "material non-public information," please see the Company's Insider Trading Policy.

YOUR COMMUNICATIONS ABOUT THE COMPANY

As part of your position at the Company, you may communicate with our customers, vendors, suppliers, partners or other third parties. It is important for you to understand your responsibility to avoid commenting on sensitive business matters and to avoid making any unauthorized disclosure of material non-public information. Please also review our Insider Trading Policy for additional information.

Press

Interviews with the press on behalf of the Company may be conducted only by a key spokesperson or by a person specifically authorized by a key spokesperson. If you are contacted by a

reporter or feel that a member of the press is attempting to obtain information from you, you should not respond and, instead, forward the question to the Director, Corporate Communications via the external-comms Slack channel. Questions may come in ways that are not obvious, and a reporter may use different methods to reach out, such as email, phone, Facebook, LinkedIn, Instagram, Twitter, etc. Reporters also may not be transparent about their topic. Please be extremely cautious and contact our public relations team immediately if a reporter reaches out to you. As a general rule, if you feel that someone is attempting to obtain information from you improperly, please contact our Legal Team immediately via the legal Slack channel.

Inadvertent Disclosures

In accordance with SEC rules, our policy is to promptly disclose through a press release or filing with the SEC any material non-public information inadvertently disclosed.

Accordingly, if you believe that you have inadvertently disclosed material non-public information, contact our Chief Legal Officer and the GitLab Legal and Compliance team immediately via the safe Slack channel because public disclosure of the material non-public information may be required within 24 hours.

Mass Internal Communications

Because communications sent to all or a large number of Team Members frequently can leak outside of the Company, disclosure of material non-public information in "blast" emails, Slacks, GitLab Issues, or presentations is prohibited unless (i) the communication is approved by a member of our Legal Team prior to distribution or (ii) the recipients of such disclosure have a bona fide need to know the related disclosure.

Attending Conferences and Similar Events

Presentations to forums such as industry trade shows and other marketing and business events are generally not the focus of SEC communication rules. However, if material non-public information is disclosed without a pre-announced webcast or accompanying press release, the disclosure may not comply with SEC rules. If an event is expected to result in the disclosure of material non-public information, the person responsible for the event must consult our Legal Team in advance to determine if a public announcement or SEC filing should be made in conjunction with the event and whether any portion of the event should be webcast.

Online Forums

Except as approved by our Legal Team, or as specifically required by your job description, you may not respond to comments, rumors or discussions or otherwise participate in Internet "chat" rooms, blogs, message boards, social media sites or other similar online forums on behalf of the Company. You may not participate, in any manner other than passive observation, in any investment or stock-related online forums relating to the Company without the prior written approval of our Legal Team.

HOW WE COMMUNICATE WITH INVESTORS

We Cannot Selectively Disclose Information

Selective disclosure of material non-public information to current or potential investors, financial analysts, brokers, dealers, investment advisors and investment companies is against Company policy and is prohibited under SEC rules. That means we cannot provide information to these individuals or groups without making the same information available to the public. If we intentionally disclose material non-public information, we will strive to do so in a manner designed to result in simultaneous, widespread distribution to the public.

If you believe that you have inadvertently disclosed material non-public information, contact our Chief Legal Officer and the Director of Legal, Corporate immediately via the safe Slack channel because public disclosure of the material non-public information may be required within 24 hours.

Announcing Financial Results

Our Disclosure Committee will review and approve the Company's quarterly and annual announcements of its operating results. Our Legal Team will review all other documents disseminating material information about the Company prior to release.

Be Aware of the Closed Period

To help us ensure compliance with SEC rules, the Company will maintain a "Closed Window" beginning at the close of trading on the first calendar day of the third month of the then-current quarter and ending at the close of trading on the second full trading day following our widespread public release of quarterly or year-end operating results. During a Closed Window, we will not provide non-public comment, confirm public financial guidance or provide new financial guidance or other material information relevant to our current or expected financial results, unless previously approved in advance by the Disclosure Committee. During a Closed Window, we have discretion, with the approval of the Disclosure Committee, to attend investor-related conferences.

Use of Scripts

Company spokespersons will endeavor to use an approved script for all public presentations designed or intended to disclose new material information about our financial performance, results of operations and our current or expected financial results. Such scripts will be reviewed and approved by the Disclosure Committee.

Earnings and Other Analyst Calls

In connection with every financial results conference call, investment conference or other investment analyst conference call, we will endeavor to make the same available to the public via a webcast or other similar means. We will publicize the webcast address, instructions on how to access the webcast and the subject matter of the call (including that we will discuss our prospects for the future, if that is expected to be part of the call) in a press release issued several days prior to the call. Acquisitions and similar transactions where substantial advance notice is not practicable may require shorter notice periods. If a replay of the conference call will be available